

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00184-CR

IN RE EARNEST MILES

Original Mandamus Proceeding

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Chief Justice Stevens

MEMORANDUM OPINION

Relator, Earnest Miles, has filed a petition for a writ of mandamus asking this Court to compel the Honorable Brad Morin, presiding judge of the 71st Judicial District Court of Harrison County, Texas, to rule on a pending pro se motion to order his counsel to "surrender copies of [Miles's] casefile." We deny Miles's requested relief since his petition does not meet the requirements of the Texas Rules of Appellate Procedure.

A petition seeking mandamus relief must contain a certification stating that the relator "has reviewed the petition and concluded that every factual statement in the petition is supported by competent evidence included in the appendix or record." TEX. R. APP. P. 52.3(k). Although Miles's petition includes an unsworn declaration that the petition and exhibits "are true and correct to the best of [his] knowledge," he does not certify that he "has reviewed the petition and concluded that every factual statement in the petition is supported by competent evidence included in the appendix or record," or language substantially similar. *Id.*

Additionally, Rule 52.7(a)(1) of the Texas Rules of Appellate Procedure requires a relator to file with his petition for a writ of mandamus "a certified or sworn copy of every document that is material to the relator's claim for relief and that was filed in any underlying proceeding." TEX. R. APP. P. 52.7(a)(1). The documents attached to Miles's petition are neither certified nor sworn to and appear to contain matters not filed in the underlying proceeding. "'Because the record in a mandamus proceeding is assembled by the parties,' we must 'strictly enforce[] the authentication requirements of rule 52 to ensure the integrity of the mandamus record.'" *In re Long*, 607 S.W.3d 443, 445 (Tex. App.—Texarkana 2020, orig. proceeding) (alteration in

original) (quoting *In re Smith*, No. 05-19-00268-CV, 2019 WL 1305970, at *1 (Tex. App.—Dallas Mar. 22, 2019, orig. proceeding) (mem. op.)).

Because Miles did not comply with the Texas Rules of Appellate Procedure, we deny his petition for a writ of mandamus.

Scott E. Stevens
Chief Justice

Date Submitted: October 23, 2026
Date Decided: October 26, 2026

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